

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #05	CCRB Case #: 201802058	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 03/15/2018 3:54 PM	Location of Incident: Avenue N and Matthews Place	18 Mo. SOL 9/15/2019	Precinct: 69
Date/Time CV Reported Thu, 03/15/2018 4:31 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 03/15/2018 4:31 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Cecil Wade	19244	962865	069 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Deborah Quagliano	08033	961130	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Cecil Wade	Abuse: Police Officer Cecil Wade threatened § 87(2)(b) with the use of force.	A . Unsubstantiated
B . POM Cecil Wade	Abuse: Police Officer Cecil Wade threatened to arrest § 87(2)(b)	B . Unsubstantiated

Case Summary

This complaint was filed by § 87(2)(b) with the CCRB by phone on March 15, 2018.

On March 15, 2018, at approximately 3:54 p.m., at Avenue N and Matthews Place in Brooklyn, § 87(2)(b) called the police to report that an unknown civilian assaulted him. PO Cecil Wade and PO Deborah Quagliano of the 69th Precinct responded to the incident, spoke with § 87(2)(b) and canvassed the area for the suspect. Following the canvass, PO Wade allegedly threatened § 87(2)(b) with the use of force by threatening to shoot and kill him (**Allegation A – Abuse of Authority, unsubstantiated**). PO Wade allegedly threatened to arrest § 87(2)(b) (**Allegation B – Abuse of Authority, unsubstantiated**).

No arrests or summonses resulted from this incident.

Video footage of the incident was recovered, however it does not capture the alleged misconduct.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Cecil Wade threatened § 87(2)(b) with the use of force.

Allegation B – Abuse of Authority: Police Officer Cecil Wade threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that he went to a bodega, was assaulted by an unknown female customer and then called 911 (BR01). PO Wade and PO Quagliano responded to the location. § 87(2)(b) told them that he saw the female go down the street. The officers canvassed with § 87(2)(b) found the female and spoke with her briefly before she left. PO Wade spoke with § 87(2)(b) again and told him, “I’m going to shoot you and you’re not going to live. You can die or you can walk. You’re going to die in this neighborhood.” § 87(2)(b) responded, “You ain’t shit. Do your jobs and file a police report. Suck my dick.” PO Wade said, “I’m not filling out a report; I’m locking you up.” § 87(2)(b) again told the officers to make a report. The officers filled out a police report and drove away.

A UF-61 complaint report was generated regarding this incident which did not identify the female involved in the altercation with § 87(2)(b) (BR02).

§ 87(2)(g)
PO Wade reviewed video footage at the bodega and determined that § 87(2)(b) was not assaulted. They offered to make a complaint report for harassment on his behalf. Lt. Joseph Shirvis arrived at the location and instructed the officers to canvass for the female who allegedly assaulted § 87(2)(b). PO Wade and PO Quagliano canvassed the area, did not find the female, and did not speak with any female regarding the reported assault. Upon informing § 87(2)(b) of the canvass results, § 87(2)(b) became uncooperative. § 87(2)(b) refused to provide his name for the complaint report and walked away. Both officers denied that any of the alleged statements were made by PO Wade. PO Wade did not threaten § 87(2)(b) with the use of force and did not threaten to arrest him.

§ 87(2)(b) did not have any recordings of the incident. Video footage was obtained from the bodega where § 87(2)(b) initially interacted with the officers. However, § 87(2)(b) and PO Wade both described that their subsequent interaction after the canvass occurred a block away at Avenue N and Matthews Place which is a residential area where no cameras were identified. PO Wade and PO Quagliano were not assigned body worn cameras.

§ 87(2)(g)

Civilian and Officer CCRB Histories

Mediation, Civil and Criminal Histories

Squad No.: 5